



Fifteen questions before you buy waterfront

What to ask about the seawall, the dock and the deck while you still have time to act on the answer.

INSPECTION PERIOD • THE CLOCK IS RUNNING

Ask these before the inspection period closes

A waterfront purchase has one structure on it that a Florida home inspector is not required to inspect (Rule 61-30.810), and it is often the most expensive one. These are the questions that surface a problem while you can still do something about it.

1 How old is the seawall, and who built it?

Ask for the permit number. A wall with no permit history is a wall with no record of what is behind it.

2 What elevation is the top of the cap, in NAVD88?

Not 'it's fine'. A number, from a survey. This is the question the whole file turns on.

3 Does that meet what the city requires today?

The requirement differs by city and sometimes by flood zone. The seller may be compliant, grandfathered, or neither.

4 If it does not, what triggers having to fix it?

Most cities only apply the current minimum to new walls or substantial repair. Find out what counts as substantial here, because it decides whether this is your problem on day one or in ten years.

5 Has the wall been repaired, and what was done?

Ask for invoices, not recollections. Cap work and panel work are very different jobs.

6 Are there tiebacks or anchors, and when were they last looked at?

The part that fails first is usually the part nobody can see.

7 Is there any sign of soil loss on the property?

Sinkholes, soft ground, settling pavers, a dip in the lawn near the wall.

8 Who owns the wall at each end?

Shared walls and walls crossing a property line turn into disputes. Establish it before closing, not after.

9 Is there a dock, and does its permit match what is actually there?

Docks are often extended or rebuilt without paperwork.

10 How deep is the water at the dock at mean low tide?

A boat that does not float at low tide is a dock that does not work.

11 What size vessel does the dock and lift actually take?

Check the lift's rated capacity against the boat the buyer intends to keep there, not the one in the photographs.

12 Is the property in a tidally influenced area, and is there a disclosure obligation?

Some local codes require a specific written disclosure in the sale contract. Broward County does, countywide (Sec. 39-408), and so does Delray Beach (LDR 7.1.7(D)(7)).

13 What does the flood map say, and what is the base flood elevation?

It sets the seawall maximum in some cities, and it affects flood insurance requirements and price.

14 Will the insurer write it, and on what terms?

Ask early. A seawall problem can turn into an insurance problem, which turns into a financing problem.

15 What would it cost to put right?

Get it priced during the inspection period. A number is a negotiating position; 'the wall looks old' is not.

The timing point. Found at the listing appointment, a seawall problem is a pricing conversation. Found on day nine of a fifteen-day inspection period, it is a file that dies. Ask these in the first week.